

25STCV31463 25STCV31463

County: los-angeles

Division: Civil Law and Motion

Department: 309

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Case Number: 25STCV31463 Hearing Date: June 26, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT 17

TENTATIVE

RULING

ARNOLD SCHRAGER

vs.

GOLDRICH & KEST, LLC, et al.

Case

No.: 25STCV31463

Hearing Date: June 26, 2026

Defendant's demurrer to the FAC's first cause of action is
OVERRULED.

Defendant's motion to strike is DENIED.

On 10/28/2026, Plaintiff Arnold

Schrager (Plaintiff) initiated this action. On 11/25/2025, Plaintiff filed a
first amended complaint (FAC) against Goldrich & Kest, LLC and Grand

Promenade, alleging: (1) breach of contract; (2) violation of unfair competition law; (3) negligent misrepresentation; (4) unjust enrichment/quasi-contract; and (5) elder financial abuse.

On 3/5/2026, Defendant Goldrich & Kest, LLC (Defendant) demurred to the FAC's first cause of action. Defendant also moves to strike portions of the FAC.

Discussion

Defendant argues that Plaintiff cannot state a claim for breach of contract because "[w]hile Plaintiff mentions having a written lease agreement for his Unit (hereinafter "Lease"), the FAC does not attach a copy of the Lease, nor does it cite the material terms of the Lease verbatim." (Motion, 3: 10-12.)

Here, while Plaintiff includes various exhibits showing the 1987 Housing Rental Covenant, the 2002 Extension Agreement, HUD/LAHD 2020 Rent & Income Limits, LAHD January 30, 2025, Correspondence, LAHD 2023 Occupancy Summary, LAHD 2024 Occupancy Summary, and a 2025 Rent Renewal Demand Notice and Plaintiff alleges that there is a written lease agreement, the lease agreement is not provided.

However, after review of the FAC, the Court finds that the lease provisions allegedly violated are alleged with sufficient specificity to put Defendant on notice of the alleged claims. Moreover, Plaintiff clearly alleges a tenant-landlord relationship pursuant to a lease agreement, and the Court accepts well pled allegations as true at the pleadings stage.

Based on the foregoing, Defendant's demurrer to the FAC's first cause of action is overruled.

Motion to Strike

Defendant moves to strike Plaintiff's prayer for punitive damages on the grounds that it is insufficiently pled.

However, Plaintiff has an operative

claim for elder financial abuse, and thus has alleged facts which could show malice, oppression, or fraud. (Cal. Civ. Code § 3294(a).)

Based on the foregoing, Defendant's motion to strike is denied.

It is so ordered.

Dated:
June , 2026

Hon. Jon R. Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.